



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2024-31757 /PODS Case No. C-030527 regarding Police Officer Karin Mendez

Date: November 19, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Mendez issued an unlawful summons and failed to provide her shield number to an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Mendez will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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MOHAMMAD KHALID
INTERIM CHAIR

September 17, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. PO Karin Mendez, Tax No. 968005
CCRB Disciplinary Case No.: 202304327 (DADS No. 2024-31757)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with Training was agreed upon and signed by all parties on August 6, 2025. Assistant Deputy Commissioner Vanessa Facio-Lince endorsed the negotiated settlement on September 9, 2025.

On May 10, 2023, in the vicinity of 901 Westchester Avenue, in the Bronx, two police officers from the 76th Precinct stopped Mr. [REDACTED]'s vehicle. Ms. [REDACTED] and Mr. [REDACTED] were occupants of the vehicle. Additional Police Officers, including PO Karin Mendez, approached the vehicle after the stop began. PO Mendez remained by the rear passenger seat on the driver's side and observed the investigation. Her involvement appears to be limited to explaining to Ms. [REDACTED] the reason for the stop and searching the vehicle once the passengers had been removed. PO Mendez recommended that the officers transport the occupants and vehicle to the stationhouse to finish their investigation since they were having trouble obtaining identifying information. One of the officers recovered an ID from the front driver's seat and provided it to PO Mendez who took it back to the station with her. PO Mendez did not assist in handcuffing or transporting anyone to the station. Prior to leaving for the station house and while on scene, several officers, including PO Mendez, refused to provide their shield numbers to Mr. [REDACTED] upon request. Back at the station, PO Mendez issued two summonses to "[REDACTED]," intending to issue them to Ms. [REDACTED]. The summonses were for failing to obey lawful orders and smoking marijuana in a vehicle. PO Mendez filled out a pedigree information sheet for Ms. [REDACTED] using an ID she has in her hand. She does not ask Ms. [REDACTED] for her name or ID at any point or verify the one she has in her hand with Ms. [REDACTED].

For the charge of failure/refusal to provide name or shield number, the mitigated penalty is training, the presumptive penalty is the forfeiture of three (3) vacation days, and the aggravated penalty is the forfeiture of five (5) vacation days. For the charge of enforcement action involving abuse of discretion or authority, the mitigated penalty is the forfeiture of ten

(10) vacation days, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

The negotiated settlement deviates from NYPD disciplinary guidelines as to the charge of enforcement action involving abuse of discretion or authority. We believe that this downward departure, from the mitigated penalty of the forfeiture of ten (10) vacation days to training, is appropriate given Officer Mendez's over 6 years of service, her lack of any prior disciplinary history, and the low severity and nature of the facts and charges. Given these factors the CCRB deems it appropriate to deviate from the Matrix and recommends the dismissal of the charge along with Training.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board